

		Again, Plaintiffs submit no competent declaration explaining what time was unnecessary, no expert testimony that the hours were unreasonable, and no rate challenge. Their requested 75 percent cut is, again, arbitrary. Based on the record before the court, the court cannot say that the work performed by Jacobson was unreasonable or unnecessary. The motion is denied as to these fees. Based on this analysis, Defendant is entitled to costs in the sum of \$94,614.29 which reflects a reduction of \$20,616.85 conceded by Defendant in the Opposition. Defendant to give notice.
58	Blue Bridge Financial, Inc. vs. Bare Bunny, LLC 24-01371055	Motion for Attorney Fees The Motion for Attorneys’ Fees brought by Plaintiff Blue Bridge Financial, Inc. (fka Blue Bridge Financial, LLC) is GRANTED, in part. The Judgment entered on April 28, 2025, as to Defendant Bare Bunny, LLC, shall be amended to include costs in the amount of \$2,175.00 and reasonable attorneys’ fees in the amount of \$15,582.00. On March 14, 2025, the Court granted summary adjudication in favor of Plaintiff, finding Defendant Bare Bunny, LLC breached an Equipment Finance Agreement. (ROA No. 111.) On April 28, 2025, judgment was entered in favor of Plaintiff and against Defendant Bare Bunny, LLC, consistent with the above. (ROA No. 123.) Per the Equipment Financing Agreement, “Borrower promises to pay all reasonable costs and expenses, including, without limitation, reasonable attorneys’ fees, collection costs plus additional expenses, incurred by Lender in the enforcement of this Agreement.” (¶8 of Scott Declaration and Exhibit 1 thereto, at §9 [ROA No. 161].) As the attorneys’ fees incurred within this collection action qualify as fees sought “in the enforcement of this Agreement,” Plaintiff is entitled to recover its <i>reasonable</i> fees incurred herein. (See Code Civ. Proc., § 1033.5, subd. (a)(10)(A) and Civ. Code, § 1717, subd. (a); See also <i>Dewberry & Davis, Inc. v. C3NS, Inc.</i> (2012) 284 Va. 485, 495.) Following a careful review of the billing submitted with this motion, the Court determines the reasonable amount of fees incurred herein is \$15,582.00.

		Of note, Defendant Rebecca Elizabeth Pate-Piercy obtained a Chapter 7 bankruptcy discharge on December 15, 2025. (§12 of Scott Declaration and Exhibit 1 thereto [ROA No. 186].) It is undisputed that Plaintiff's judgment against Defendant Rebecca Elizabeth Pate was included within the discharge order, such that "additional fees should not be imposed against her..." (Supplemental Brief: 2:19-20 [ROA No. 184].) Consequently, the above order is limited to Defendant Bare Bunny, LLC.
59	Emtiaz vs. BMW of North America, LLC 25-01469682	Motion for Judgment on the Pleadings Defendants BMW of North America, LLC ("BMW NA") and Sterling Motors, Ltd. d/b/a Sterling BMW ("Sterling BMW") motion for judgment on the pleadings is DENIED as to the first cause of action and GRANTED as to the second and third causes of action. Defendants' unopposed request for judicial notice is granted. Should Plaintiffs wish to file an amended complaint that addresses the second cause of action as discussed in this ruling, Plaintiffs must file and serve it within 15 days of service of notice of ruling. Leave to amend the third cause of action is denied. A defendant may move for judgment on the pleadings where the court has no jurisdiction of the subject of the cause of action alleged in the complaint or the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc, § 438 subd. (c)(1)(B).) A non-statutory motion for judgment on the pleadings may be made any time before or during trial. (<i>Stoops v. Abbassi</i> (2002) 100 Cal.App.4th 644, 650.) "Such motion may be made on the same ground as those supporting a general demurrer, <i>i.e.</i>, that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense." (<i>Id.</i>) The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law. (<i>Bezirdjian v. O'Reilly</i> (2010) 183 Cal.App.4th 316, 321-322, citing <i>Schabarum v. California Legislature</i> (1998) 60 Cal.App.4th 1205, 1216.)